Notice to explain preparation and review procedure

SYDKYK
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Owner: Employee Relations | Classification: Restricted Employee Relations

Scope and review responsibility

This procedure governs the preparation and review of a notice requesting an employee's explanation. Employee Relations and Legal must confirm applicable requirements, wording, response time, service arrangements and employee rights for the specific matter. A notice requests information; it is not a finding of misconduct or a disciplinary decision.

Authorization and intake

Only an assigned Employee Relations reviewer may prepare or access a case-specific draft. Required inputs include case ID, assigned reviewer, incident summary, relevant dates, evidence references, potentially relevant policy provisions and any response already provided. Missing facts must be marked unverified. General manager authority does not grant access to restricted case files.

Draft review steps

Separate reported facts, disputed points and unknown information. Reference evidence by record ID and avoid assumptions about intent or guilt. Prepare an unsent draft for reviewer correction. Employee Relations and Legal must approve the exact wording, response period and assistance or meeting arrangements before an authorized person issues the notice. An assistant cannot serve a notice, decide a sanction or change employment status.

Notice template

DRAFT FOR EMPLOYEE RELATIONS AND LEGAL REVIEW
To: [employee name and employee ID]
From: Employee Relations, SYDKYK
Date: [issue date]
Case reference: [case ID]
Subject: Request for explanation concerning [specific reported incident]
Our records indicate [factual description with dates and evidence references]. The following information remains unverified or disputed: [details]. No conclusion has been reached. Please provide your explanation and any corrections or information you wish the reviewer to consider.
Potentially relevant policy provisions: [document ID, section and explanation of relevance]. Please submit your response through [restricted channel] by [date and time approved by Employee Relations and Legal]. For clarification, assistance or a request for additional time, contact [assigned reviewer]. [Include approved meeting and support arrangements where applicable.]
Prepared by [reviewer]. Issuance and service details must be completed only after approval.

Response and closure

Store the response and evidence in the restricted case record. Record receipt without making an automatic credibility assessment. A human reviewer determines further inquiries, meetings and the outcome. Closure records identify the decision maker and authorized recipients. Revoke case access when the assignment ends and retain records according to the approved legal-hold and retention schedule.